

thereupon the foregoing provisions of this Act shall apply to that work, with the following modifications :—

- (1) The advance to be made by the Treasury shall not exceed two-thirds of the cost of the execution and equipment of the work ;
- (2) The balance of that cost shall be defrayed by the Department of Agriculture and by persons locally interested, in such proportions as may be agreed upon ; and
- (3) Any reference in this Act to the Congested Districts Board shall not apply.

11.—(1) Where any marine work has become the public property of a county, in pursuance of section seven of the Grand Jury (Ireland) Act, 1853, the council of the county and the Board of Works may agree that the work shall become vested in the Board of Works, and shall be inspected, maintained and kept in repair by that Board out of the general maintenance fund under this Act, and such agreement shall have effect accordingly ; and the provisions of this Act relating to certified works vested in that Board shall thereupon apply to the said work.

Provision with respect to marine works being the public property of counties. 16 & 17 Vict. c. 136.

(2) An agreement under this section shall contain a covenant for the payment to the Board of Works by the county council of such an annual sum as the Lord Lieutenant may certify to be properly payable by the council as a county contribution in respect of the work, and the provisions of this Act relating to county contributions shall apply to that sum.

12. In this Act—

Definitions.

The expression “marine work” includes any physical construction or operation required for, or connected with, the purposes of navigation ;

The expression “the Board of Works” means the Commissioners of Public Works in Ireland ;

The expression “the Department of Agriculture” means the Department of Agriculture and Technical Instruction for Ireland ; and

The expressions “the Congested Districts Board” and “congested districts county” have the same meanings as in the Purchase of Land (Ireland) Act, 1891.

54 & 55 Vict. c. 48.

13. This Act may be cited as the Marine Works (Ireland) Act 1902.

Short title.

CHAPTER 25.

An Act to amend the Lands Valuation (Scotland) Acts in regard to the Law relating to the Rating of Machinery. [8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Provision as
to what is
"machinery
fixed or
attached."

1. Section forty-two of the Valuation Act, 1854, shall be read and construed as if the following proviso were inserted after the words "and all machinery fixed or attached to any lands or heritages," that is to say: Provided that, in any building occupied for any trade, business or manufacturing process, the expression "machinery fixed or attached" shall be construed as including all machinery, machines or plant in or on the lands or heritages for producing or transmitting first motive power, or for heating or lighting such building, but, save as herein provided, shall not include machines, tools or appliances which are only so fixed that they can be removed from their place without necessitating the removal of any part of the building.

Construction,
short title
and extent.
17 & 18 Vict.
c. 91.

2. This Act shall be read and construed as one with the Lands Valuation (Scotland) Act, 1854, and any Act amending the same, and may be cited separately as the Lands Valuation (Scotland) Amendment Act, 1902, and shall apply to Scotland only.

CHAPTER 26.

An Act to substitute the Government of the Commonwealth of Australia for the Governments of the States of New South Wales, Queensland and Victoria in the Pacific Cable Act, 1901. [8th August 1902.]

1 Edw. 7. c. 31.

WHEREAS, as a consequence of the transfer to the Commonwealth of Australia (under the constitution of the Commonwealth) of the posts, telegraphs, and telephone departments in each of the States of New South Wales, Queensland and Victoria, any such obligation of the said States to provide money on account of the Pacific cable as is recited in the Pacific Cable Act, 1901, has been undertaken by the Government of the Commonwealth, and any right of the said States to share in the profits of the cable has become vested in the Commonwealth:

And whereas it is expedient to make such amendments in the Pacific Cable Act, 1901, as are necessary for the purpose of substituting the Commonwealth for the said States:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Substitution
of Australian
Commonwealth
for States. •

1.—(1) The Government of the Commonwealth of Australia shall be substituted in the Pacific Cable Act, 1901, for the Governments of the States of New South Wales, Queensland and Victoria, and the Colonial Governments referred to in that Act shall accordingly be the Governments of Canada, of the Commonwealth of Australia and of New Zealand.

(2) Two members representing the Government of the Commonwealth of Australia shall be substituted, as members of the Pacific